

Written Consent of the Sole Director, Sole Shareholder, and Founder of sol pbc

Amendment and Restatement of Article 8 of the Articles of
Incorporation, and Restatement of the Bylaws

sol pbc

WRITTEN CONSENT OF THE SOLE DIRECTOR, SOLE SHAREHOLDER, AND FOUNDER OF SOL PBC

Amendment and Restatement of Article 8 of the Articles of Incorporation, and Restatement of the Bylaws

Effective Date: the date of the Founder's signature below

Founder, Sole Director, and Sole Shareholder: Jeremie Miller

The undersigned, being the Founder, the sole director, and the sole shareholder of sol pbc, a Colorado public benefit corporation (the "**Corporation**"), acting by written consent in lieu of a meeting (in the Founder's capacity as sole director, pursuant to C.R.S. § 7-108-202; in the Founder's capacity as sole shareholder, pursuant to C.R.S. §

7-107-104), the Articles of Incorporation, and the Bylaws of the Corporation, and acting personally as Founder for purposes of Article 8, hereby adopts the following recitals and resolutions.

Recitals

WHEREAS, the Corporation is a Colorado public benefit corporation, organized under Articles of Incorporation filed with the Colorado Secretary of State on January 1, 2026 (Doc. 20261003269), as the same may have been amended or supplemented from time to time (the “**Articles of Incorporation**”; Article 8 of the Articles of Incorporation as in effect immediately prior to the effectiveness of this Written Consent, the “**Existing Article 8**”);

WHEREAS, Section 8.7 of the Existing Article 8 (titled “Founder Consent Required for Changes to Article 8”) provides that, to the fullest extent permitted by the Colorado Business Corporation Act, any amendment, repeal, adoption of any inconsistent provision, or waiver of any provision of Article 8 requires, in addition to any approvals otherwise required by law, the Founder’s prior written consent in an instrument that (i) specifically references Section 8.7, and (ii) expressly approves the particular amendment, repeal, waiver, or inconsistent provision, and that is signed and dated personally by the Founder and not given by any agent or representative of the Founder;

WHEREAS, the Founder is currently serving as the sole director and sole officer of the Corporation, no event has occurred that would require dissolution of the Corporation under Section 8.3 of the Existing Article 8, and the Corporation is not in dissolution, winding-up, or any other proceeding for cessation of corporate existence;

WHEREAS, the Founder has determined that it is in the best interests of the Corporation, of those persons materially affected by the Corporation’s conduct, and of the Corporation’s specific public benefit purpose, to amend and restate Article 8 of the Articles of Incorporation in its entirety, in the form attached hereto as **Exhibit A** (the “**Restated Article 8**”);

WHEREAS, the Founder has further determined that it is in the best interests of the Corporation to restate the bylaws of the Corporation in their entirety, in the form attached hereto as **Exhibit B** (the “**Restated Bylaws**”), conformed to the Restated Article 8 and superseding the bylaws of the Corporation as in effect immediately prior to the effectiveness of this Written Consent (the “**Existing Bylaws**”);

WHEREAS, on April 10, 2026, Section 3.4 was added to the Existing Bylaws (the “**Section 3.4 Addition**”) by a procedure that lacked a contemporaneous paired written consent of the sole director, and the Founder desires by this Written Consent to ratify the Section 3.4 Addition and simultaneously supersede it through the adoption of the Restated Bylaws;

WHEREAS, no corporate action of the Corporation, and no contract, representation, or warranty of the Corporation, has been taken or made in reliance on the Section 3.4 Addition during the period from its addition on April 10, 2026 through the date of this Written Consent;

WHEREAS, Section 8.4(c) of the Restated Article 8 names Ramon Rhymes as the initial Successor Designator, and Mr. Rhymes has communicated his acceptance of that role to the Corporation;

NOW, THEREFORE, BE IT:

Article 1 — Founder Written Consent Under Section 8.7 of the Existing Article 8

RESOLVED, that the Founder, acting personally for purposes of Section 8.7 of the Existing Article 8, hereby gives Founder Written Consent within the meaning of, and pursuant to, Section 8.7 of the Existing Article 8;

RESOLVED FURTHER, that this Founder Written Consent **specifically references Section 8.7 of the Existing Article 8** in compliance with Section 8.7(b)(i) of the Existing Article 8;

RESOLVED FURTHER, that the Founder **expressly approves** the amendment and restatement of Article 8 of the Articles of Incorporation in its entirety in the form of the Restated Article 8 attached hereto as Exhibit A, in compliance with Section 8.7(b)(ii) of the Existing Article 8;

RESOLVED FURTHER, that this Founder Written Consent is given personally by the Founder, is signed and dated by the Founder personally, and is not given by any agent, attorney-in-fact, personal representative, conservator, guardian, fiduciary, or other person acting for or on behalf of the Founder, in compliance with Section 8.7(c) of the Existing Article 8.

Article 2 — Approval and Adoption of the Restated Article 8

RESOLVED, that the Founder, acting in his capacity as the sole director of the Corporation by written consent in lieu of a meeting pursuant to C.R.S. § 7-108-202, hereby approves and adopts the Restated Article 8 in the form attached hereto as Exhibit A, and authorizes and directs the filing of Articles of Amendment with the Colorado Secretary of State containing the text of the Restated Article 8, all pursuant to and in compliance with C.R.S. § 7-110-103, § 7-110-106, and the other applicable provisions of the Colorado Business Corporation Act;

RESOLVED FURTHER, that the Founder, acting in his capacity as the sole shareholder of the Corporation by written consent in lieu of a meeting pursuant to C.R.S. § 7-107-104, hereby approves and adopts the Restated Article 8 in the form attached hereto as Exhibit A, pursuant to and in compliance with C.R.S. § 7-110-103 and the Articles of Incorporation, and waives any notice and meeting requirements applicable to such shareholder approval;

RESOLVED FURTHER, that the corporate-action approvals given under this Article 2 are in addition to, and not in substitution for, the Founder Written Consent given under Article 1 hereof and the Founder Consent given under Article 5 hereof.

Article 3 — Adoption of the Restated Bylaws

RESOLVED, that the Founder, acting in his capacity as the sole director of the Corporation (and, in his capacity as the sole shareholder of the Corporation, to the extent any provision of the Restated Bylaws is required by law or the Articles of Incorporation to be approved by shareholders), hereby adopts the Restated Bylaws in the form attached hereto as Exhibit B;

RESOLVED FURTHER, that the Restated Bylaws supersede in their entirety the Existing Bylaws (adopted by sole-director written consent dated March 29, 2026), including any amendments thereto and the Section 3.4 Addition.

Article 4 — Ratification and Supersession of the Section 3.4 Addition

RESOLVED, that the Founder, acting in all applicable capacities, hereby ratifies, confirms, and approves the Section 3.4 Addition, with the same force and effect as if a paired written consent of the sole director had been executed contemporaneously with the Section 3.4 Addition on April 10, 2026, thereby curing any procedural defect arising from the absence of such contemporaneous paired written consent;

RESOLVED FURTHER, that effective immediately upon the adoption of the Restated Bylaws under Article 3 hereof, the Section 3.4 Addition is superseded in its entirety by the Restated Bylaws, which do not contain a Section 3.4.

Article 5 — Founder Consent Under Section 8.6(b) of the Restated Article 8

RESOLVED, that the Founder, acting personally for purposes of Section 8.6 of the Restated Article 8, hereby gives Founder Consent under Section 8.6(b) of the Restated Article 8 to each of the actions taken or contemplated by this Written Consent (including, without limitation, the adoption of the Restated Bylaws under Article 3 hereof and the ratification and supersession of the Section 3.4 Addition under Article 4 hereof), and ratifies and re-approves each such action;

RESOLVED FURTHER, that this Founder Consent **specifically references Section 8.6 of the Restated Article 8 and expressly approves each such action;**

RESOLVED FURTHER, that this Article 5 constitutes Founder Consent within the meaning of Section 8.1(e) of the Restated Article 8, is given personally by the Founder, is signed and dated by the Founder personally, and is not given by any agent, attorney-in-fact, personal representative, conservator, guardian, fiduciary, or other person acting for or on behalf of the Founder, in compliance with Section 8.1(e) of the Restated Article 8.

Article 6 — Filing Authorization

RESOLVED, that the Founder, and any officer or designee of the Founder, is hereby authorized to (i) prepare, execute, and file Articles of Amendment with the Colorado Secretary of State containing the text of the Restated Article 8, (ii) pay the applicable filing fees, and (iii) take any and all other actions reasonably necessary or appropriate to effect the Restated Article 8, including responding to inquiries from the Colorado Secretary of State, making nonsubstantive corrections to the filing form, and obtaining and recording the filing receipt.

Article 7 — Effective Dates

RESOLVED, that:

(a) the Restated Article 8 shall be effective upon the acceptance of the Articles of Amendment for filing by the Colorado Secretary of State (the “**Article 8 Effective Time**”);

(b) the Restated Bylaws shall be effective at the Article 8 Effective Time (and not earlier), so that the bylaws and the articles of incorporation of the Corporation operate as a coordinated, mutually-conformed set from a single moment;

(c) the Founder Consent given under Article 5 hereof (under Section 8.6(b) of the Restated Article 8) shall be effective at the Article 8 Effective Time, and shall be deemed given as of that time;

(d) the ratification of the Section 3.4 Addition under the first resolution of Article 4 hereof shall be effective upon the execution of this Written Consent, and the supersession of the Section 3.4 Addition under the second resolution of Article 4 hereof shall be effective upon the adoption of the Restated Bylaws under Article 3 hereof (i.e., at the Article 8 Effective Time, in accordance with subsection (b) above); and

(e) all other resolutions in this Written Consent shall be effective upon the execution of this Written Consent.

Signatures

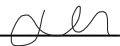
The undersigned executes this Written Consent in the capacities indicated below, intending each capacity to be effective separately and in combination, and intending this Written Consent — together with Exhibit A and Exhibit B, which together with this Written Consent constitute a single integrated instrument — to satisfy each amendment-lock and approval requirement applicable to the actions taken hereby (including, without limitation, Section 8.7 of the Existing Article 8, Section 8.6(b) of the Restated Article 8, and the director and shareholder approval requirements of the Colorado Business Corporation Act).

FOUNDER (for purposes of Section 8.7 of the Existing Article 8 and Section 8.6(b) of the Restated Article 8):

Signature: _____ 

Printed Name: Jeremie Miller, Founder

SOLE DIRECTOR:

Signature: _____ 

Printed Name: Jeremie Miller, sole director of sol pbc

SOLE SHAREHOLDER:

Signature: _____ 

Printed Name: Jeremie Miller, sole shareholder of sol pbc

Date of execution (all capacities): 2026-05-01_____

Exhibit A — Restated Article 8

The text of Article 8 of the Articles of Incorporation of sol pbc, amended and restated in its entirety, is appended hereto and incorporated by reference as Exhibit A, and shall be deemed part of this Written Consent as a single integrated instrument for all purposes, as if fully set forth herein.

Exhibit B — Restated Bylaws

The text of the Bylaws of sol pbc, restated in their entirety, is appended hereto and incorporated by reference as Exhibit B, and shall be deemed part of this Written Consent as a single integrated instrument for all purposes, as if fully set forth herein.

Article 8 — Restated

Attachment to Articles of Incorporation of sol pbc

sol pbc

ATTACHMENT TO ARTICLES OF INCORPORATION OF SOL PBC

ARTICLE 8: PUBLIC BENEFIT, CUSTOMER PRIVACY COVENANT, AND GOVERNANCE RESTRICTIONS

Section 8.1. Definitions.

(a) “CPA” means the Colorado Privacy Act, C.R.S. § 6-1-1301 et seq., as amended, and any successor Colorado statute of similar scope and purpose.

(b) “Customer” means an individual who uses, purchases, subscribes to, accesses, or is the subject of the Corporation’s products, services, software, communications, or data-processing activities, whether or not the individual pays the Corporation directly.

(c) “Customer Data” means any data, information, content, record, output, or inference concerning a Customer or derived from data, information, content, records, outputs, or inferences concerning a Customer, whether or not Personal Data and whether or not de-identified, anonymized, aggregated, pseudonymized, encrypted, or

otherwise transformed. Customer Data excludes only Publicly Available Information, provided that records, metadata, inferences, or associations showing that a Customer accessed, viewed, generated, saved, collected, or interacted with Publicly Available Information remain Customer Data.

(d) “Founder” means Jeremie Miller.

(e) “Founder Consent” means a prior written instrument signed and dated personally by the Founder that specifically identifies the action approved and expressly states that it is given under this Article 8. Founder Consent may not be given by any agent, attorney-in-fact, personal representative, conservator, guardian, fiduciary, or other person acting for or on behalf of the Founder.

(f) “Founder Stewardship Period” means any period during which the Founder is serving as a director of the Corporation.

(g) “Fundamental Transaction” means any merger, conversion, domestication, share exchange, dissolution, liquidation, winding up, sale or other disposition of all or substantially all assets, transfer of control, or other transaction or series of related transactions that has substantially similar effect.

(h) “Mandatory Law” means an applicable statute, regulation, court order, judgment, subpoena, governmental demand, or other legal obligation that the Corporation cannot lawfully waive, vary, or avoid.

(i) “Personal Data” and “Targeted Advertising” have the meanings given to those terms in the CPA, as amended. “Publicly Available Information” means information excluded from “Personal Data” under the CPA because it is publicly available.

(j) “Provide” or “Provision” means any sale, license, sublicense, lease, disclosure, transfer, provision of access, making available, or other provision of Customer Data to any person or entity outside the Corporation.

(k) “Service Provider” means any person or entity engaged by the Corporation under a written agreement to process Customer Data solely on behalf of the Corporation or at the specific direction of the Customer, solely to the extent necessary to provide, maintain, secure, or support the product or service requested by the Customer. The agreement must prohibit independent use or disclosure of Customer Data, require processing only as instructed by the Corporation, impose confidentiality and security obligations no less protective than the

Customer Privacy Covenant in Section 8.3, require return or deletion of Customer Data upon termination unless retention is required by Mandatory Law, and require any subcontractor to be bound by equivalent obligations. No engagement of a Service Provider under this Section 8.1(k) shall be construed as a “license” or “ sublicense” for purposes of Section 8.3(a)(1).

(l) “Successor Designator” means the person from time to time serving in the role described in Section 8.4. The initial Successor Designator is identified in Section 8.4(c).

Section 8.2. Public Benefit Purpose and Construction.

(a) The specific public benefit purpose of the Corporation is to advance digital self-determination by providing open-source, privacy-respecting tools and services that enable individuals to directly collect and gain insight from their personal data.

(b) The Customer Privacy Covenant in Section 8.3 is adopted to protect and operationalize the Corporation’s specific public benefit purpose and is fundamental to the Corporation’s status as a Colorado public benefit corporation.

(c) This Article 8 shall be construed to provide the greatest customer privacy protection permitted by applicable law. No bylaw, policy, resolution, agreement, course of dealing, failure to enforce, or corporate action may waive, narrow, or avoid this Article 8 except in accordance with Section 8.6.

Section 8.3. Customer Privacy Covenant.

(a) The Corporation’s Provision of Customer Data to any person or entity outside the Corporation is restricted as follows:

(1) **Absolute Prohibition.** The Corporation shall not, under any circumstances, sell, license, sublicense, or lease Customer Data, whether or not for monetary or other valuable consideration. The exceptions in Section 8.3(a)(2) shall not be read to permit any sale, license, sublicense, or lease of Customer Data.

(2) Conditional Prohibition. The Corporation shall not Provide Customer Data to any person or entity outside the Corporation, whether or not for monetary or other valuable consideration, except solely as follows:

(i) to a Service Provider, solely to the extent strictly necessary to provide, maintain, secure, or support the product or service requested by the Customer;

(ii) as required by Mandatory Law, provided that the Corporation shall use reasonable efforts to limit the Provision to the minimum required and to notify the affected Customer unless notice is legally prohibited;

(iii) at the Customer's specific, informed, affirmative direction for the particular Provision or integration, and not by implied consent, bundled consent, broad terms of service, failure to opt out, or dark pattern.

(b) The Corporation shall not process Customer Data for Targeted Advertising. In addition, and without limiting the foregoing, the Corporation shall not engage in, or permit any other person or entity to engage in on its behalf, behavioral advertising or behavioral profiling using Customer Data, including first-party behavioral advertising, first-party behavioral profiling, cross-context behavioral advertising, or the creation, augmentation, or sale of behavioral profiles, regardless of whether such activity would be excluded from the definition of "Targeted Advertising" under the CPA (including by reason of any first-party, contextual, measurement, frequency-capping, or analogous exclusion). For purposes of this Section 8.3(b), the prohibitions in this paragraph apply as if all Customer Data were Personal Data.

(c) The Corporation shall not use a Fundamental Transaction, bankruptcy, reorganization, assignment, asset sale, data transfer, affiliate transfer, service-provider arrangement, or similar transaction to avoid this Section 8.3. Any Provision of Customer Data in connection with any such transaction must comply with this Section 8.3 and Section 8.5.

(d) The Corporation shall maintain a reasonable means for each Customer to access and export, in a standard, portable, machine-readable, and readily usable format, Customer Data stored by the Corporation that is reasonably capable of being associated with that Customer without re-identifying de-identified, anonymized, aggregated, or pseudonymized data and without compromising another Customer's privacy. To the extent reasonably technically practicable, this access and export capability shall be self-service and

shall not require case-by-case discretionary approval by the Corporation. If self-service export is not reasonably technically practicable, the Corporation shall provide a direct export mechanism.

Section 8.4. Founder Vacancy and Successor Designator.

(a) Except as expressly provided in this Section 8.4, the number, election, qualification, term, and removal of directors shall be governed by the Colorado Business Corporation Act, these Articles, and the bylaws. Directors may be removed by shareholders only for cause. Cumulative voting shall not be permitted in the election of directors.

(b) Any vacancy on the board of directors resulting from the Founder ceasing to serve as a director for any reason may be filled only by written designation of the Successor Designator, to the fullest extent permitted by C.R.S. § 7-108-110. If no Successor Designator is then willing and able to serve, the vacancy may be filled as otherwise provided by the Colorado Business Corporation Act, these Articles, and the bylaws.

(c) The initial Successor Designator is Ramon Rhymes.

(d) During the Founder Stewardship Period, the Founder may replace the Successor Designator by written instrument signed and dated personally by the Founder and delivered to the Corporation. This right is personal to the Founder and may not be exercised by any agent, attorney-in-fact, personal representative, conservator, guardian, fiduciary, or other person acting for or on behalf of the Founder.

(e) A then-serving Successor Designator may designate a successor Successor Designator by written instrument signed and dated by the then-serving Successor Designator and delivered to the Corporation. The designation becomes effective when the then-serving Successor Designator ceases to serve, resigns, becomes unable or unwilling to serve, or declines to act.

(f) The Successor Designator's role is appointive only. The Successor Designator has no operational, managerial, supervisory, or oversight authority over the Corporation and, solely by serving in that role, is not a director, officer, shareholder, agent, or fiduciary of the Corporation or

its shareholders. The Successor Designator shall select a director whom the Successor Designator reasonably believes is committed to the Corporation's specific public benefit purpose and to this Article 8.

Section 8.5. Fundamental Transactions and Public Benefit Corporation Status.

(a) The Corporation shall not enter into or effect any Fundamental Transaction unless:

(i) the transaction complies with Section 8.3;

(ii) the transaction does not waive, narrow, avoid, or materially impair this Article 8;

(iii) if any Customer Data, product, service, or business line involving Customer Data is transferred to, assumed by, or made available to any surviving, resulting, acquiring, successor, or transferee entity, that entity assumes obligations no less protective than this Article 8 in its governing documents or in a written instrument enforceable by the Corporation and by its shareholders and former shareholders, who shall be express third-party beneficiaries of such written instrument with the right to enforce it directly, and such obligations shall survive the consummation of the transaction;

(iv) in any merger, conversion, domestication, share exchange, transfer of control, or other transaction in which the Corporation or its business continues in another entity, the surviving, resulting, acquiring, or successor entity is a Colorado public benefit corporation or an entity that, under its governing law and governing documents, is required to preserve a substantially equivalent specific public benefit and to manage in a manner substantially equivalent to the balancing obligations imposed on a Colorado public benefit corporation; and

(v) the transaction receives all approvals required by applicable law, these Articles, and Section 8.6.

(b) The Corporation shall not abandon, revoke, remove, or materially weaken its status as a Colorado public benefit corporation or its specific public benefit purpose except in accordance with Section 8.6.

Section 8.6. Amendments, Waivers, and Indirect Avoidance.

(a) No amendment, restatement, repeal, waiver, adoption of an inconsistent provision, or other action having the effect of amending, repealing, waiving, narrowing, or avoiding this Article 8 shall be effective unless approved as required by applicable law and this Section 8.6.

(b) During the Founder Stewardship Period, any action described in Section 8.6(a) also requires Founder Consent.

(c) Outside the Founder Stewardship Period, any action described in Section 8.6(a) may be taken only if approved as required by applicable law and only:

(i) to strengthen the protections set forth in Section 8.3, the Customer's rights of access, export, or control over Customer Data, the restrictions set forth in Section 8.5, or the Corporation's status and obligations as a Colorado public benefit corporation; or

(ii) to the minimum extent strictly required by Mandatory Law, while preserving the substance and protections of this Article 8 to the maximum extent permitted by law.

(d) The Corporation shall not accomplish indirectly by bylaw, resolution, policy, agreement, restatement, merger, conversion, domestication, share exchange, dissolution, asset sale, transfer, recapitalization, course of dealing, failure to enforce, or otherwise any action that would be prohibited if taken directly under this Article 8.

Section 8.7. Severability; Reformation.

If any provision of this Article 8 or its application to any person, entity, or circumstance is held invalid or unenforceable, the provision shall be enforced to the fullest extent permitted by law and reformed to the minimum extent necessary to make it valid and enforceable. The invalidity or unenforceability of one provision shall not affect the validity or enforceability of the remainder of this Article 8.

The forum-selection clause for internal corporate claims is set forth in the bylaws; it is not duplicated in Article 8.

Bylaws

sol pbc, a Colorado Public Benefit Corporation

sol pbc

BYLAWS OF SOL PBC

A Colorado Public Benefit Corporation

These bylaws supersede in their entirety the bylaws adopted by sole director written consent dated 2026-03-29, including any subsequent amendments thereto. They are subordinate to the corporation's articles of incorporation, including Article 8 thereof. Capitalized terms used but not defined herein have the meanings given to those terms in Article 8 of the articles of incorporation.

ARTICLE I — NAME AND PURPOSE

Section 1.1 — Name. The name of the corporation is sol pbc.

Section 1.2 — State of Incorporation. sol pbc is incorporated in the State of Colorado as a public benefit corporation under the Colorado Business Corporation Act (C.R.S. Title 7, Articles 101 through 117). The articles of incorporation are filed with the Colorado Secretary of State and are published at solpbc.org.

Section 1.3 — Public Benefit Purpose. The corporation's specific public benefit purpose is set forth in Article 8, Section 8.2 of the articles of incorporation. These bylaws are subordinate to that purpose and to the covenants in Article 8.

ARTICLE II — BOARD OF DIRECTORS AND OFFICERS

Section 2.1 — Board Size. The number of directors is one (1) as of the date of these bylaws. The number may be increased or decreased by resolution of the board of directors or by action of the shareholders, subject to Article 8 of the articles of incorporation. The initial sole director is the Founder, Jeremie Miller.

Section 2.2 — Election of Directors. Directors are elected by the shareholders, except as provided by Article 8, Section 8.4 of the articles of incorporation regarding vacancies arising from the Founder ceasing to serve as a director. Cumulative voting is not permitted, as provided by Article 8, Section 8.4(a) of the articles of incorporation.

Section 2.3 — Removal of Directors. Directors may be removed by shareholders only for cause, as provided by Article 8, Section 8.4(a) of the articles of incorporation.

Section 2.4 — Vacancies. Vacancies on the board of directors are filled in accordance with the Colorado Business Corporation Act and Article 8, Section 8.4 of the articles of incorporation. A vacancy resulting from the Founder ceasing to serve as a director is filled exclusively by the Successor Designator pursuant to Article 8, Section 8.4(b) of the articles of incorporation.

Section 2.5 — Term. Each director holds office until the next annual meeting of shareholders or until a successor is elected and qualified, or until the director's earlier death, resignation, or removal in accordance with these bylaws and the articles of incorporation.

Section 2.6 — Meetings; Quorum; Voting. The board of directors may meet, take action by written consent, and conduct business in accordance with the Colorado Business Corporation Act. A majority of directors then in office constitutes a quorum. Action of the board requires the affirmative vote of a majority of directors present at a meeting at which a quorum is present, except as otherwise provided in the articles of incorporation, these bylaws, or the Colorado Business Corporation Act.

Section 2.7 — Officers. The corporation has such officers as the board of directors determines from time to time. The Founder is the initial President and Secretary of the corporation. The board may appoint additional or replacement officers, who serve at the pleasure of the board, subject to any written employment or service agreements.

Section 2.8 — Employees and Service Providers. The corporation may engage employees and Service Providers as needed to fulfill its mission. All such persons must comply with the data governance covenants in Article 8 of the articles of incorporation and Article III of these bylaws. Any written agreement with an employee or Service Provider that involves access to or processing of Customer Data must include terms consistent with those covenants.

ARTICLE III — DATA GOVERNANCE (OPERATIONAL)

As used in this Article III, “Customer,” “Customer Data,” and “Service Provider” have the meanings given to those terms in Article 8 of the articles of incorporation.

Section 3.1 — Encryption and Access Controls. The corporation shall maintain reasonable technical, administrative, and physical safeguards for Customer Data, including encryption of Customer Data in transit and at rest, least-privilege access controls, and access logging. The corporation shall use the most protective processing architecture reasonably practicable for each system and shall design and improve its systems toward architectures — including end-to-end encryption, customer-held keys, secure enclaves, and confidential computing — that minimize and, where reasonably practicable, eliminate operator access to plaintext Customer Data.

Section 3.2 — Government Compulsion. In the event of government compulsion to disclose Customer Data, the corporation shall (a) resist disclosure to the maximum extent permitted by law, (b) notify the affected Customer if legally permitted, and (c) pursue technical architectures, such as Customer-held encryption keys, that make compelled disclosure technically infeasible.

Section 3.3 — Operational Only; Article 8 Controls. This Article III is operational only. The substantive prohibitions on the sale, license, transfer, disclosure, or other provision of Customer Data are set forth

in Article 8, Section 8.3 of the articles of incorporation. Nothing in this Article III may be construed to permit any action prohibited by Article 8.

ARTICLE IV — FINANCIAL STRUCTURE

Section 4.1 — Funding. The corporation may raise capital through SAFE agreements, equity rounds, or other instruments that do not conflict with Article 8 of the articles of incorporation or the corporation's specific public benefit purpose.

Section 4.2 — Revenue Constraints. The corporation may earn revenue only through activities that comply with Article 8 of the articles of incorporation. Revenue shall not be derived from any sale, license, lease, disclosure, transfer, Targeted Advertising use, or other provision of Customer Data prohibited by Article 8.

Section 4.3 — No Investor Data or Intellectual Property Rights by Status. No investor, shareholder, SAFE holder, or similar financing counterparty obtains any right to access Customer Data or corporation intellectual property solely by virtue of that status. Any separate contractual right remains subject to Article 8 of the articles of incorporation.

ARTICLE V — BENEFIT REPORTING

Section 5.1 — Annual Benefit Report. As required by Colorado public benefit corporation law (C.R.S. § 7-101-507), the corporation shall prepare an annual benefit report that includes (a) a narrative description of the ways in which the corporation promoted its specific public benefit purpose during the preceding year and the best interests of those materially affected by the corporation's conduct; (b) any circumstances that have hindered the corporation's promotion of its specific public benefit purpose; (c) an assessment of the corporation's overall social and environmental performance during the preceding year, evaluated against a recognized third-party standard selected by the board of directors; (d) the process and rationale for the board's selection of, or any change in, the third-party standard; and (e) any other information required by applicable law.

Section 5.2 — Delivery and Posting. The corporation shall deliver the annual benefit report to each shareholder and shall post the report on the public-facing portion of the corporation's website if the corporation maintains a website. The corporation may omit financial or proprietary information from the publicly posted version to the extent permitted by applicable law.

ARTICLE VI — AMENDMENTS

Section 6.1 — Bylaw Amendment Process. These bylaws may be amended by the board of directors or by the shareholders, in accordance with the Colorado Business Corporation Act, except that no amendment to these bylaws may amend, waive, narrow, or avoid Article 8 of the articles of incorporation.

Section 6.2 — Article 8 Controls. If any provision of these bylaws conflicts with Article 8 of the articles of incorporation, Article 8 controls. No bylaw, amendment, policy, resolution, officer action, director action, shareholder action, or course of dealing may amend, waive, narrow, or avoid Article 8 except as expressly permitted by Article 8 and applicable law.

ARTICLE VII — MISCELLANEOUS

Section 7.1 — Exclusive Forum for Internal Corporate Claims. Unless the corporation consents in writing to the selection of an alternative forum, the state courts of Colorado shall be the exclusive forum for any internal corporate claim, as defined in C.R.S. § 7-102-108, to the fullest extent permitted by law. If no Colorado state court has personal and subject-matter jurisdiction over such claim, the United States District Court for the District of Colorado shall be the exclusive forum, if it has personal and subject-matter jurisdiction. If neither such court has personal and subject-matter jurisdiction, the claim shall be brought in another court located in Colorado with personal and subject-matter jurisdiction. This Section 7.1 shall not be construed to confer jurisdiction on any court, to prohibit a Colorado court from hearing a claim, or to require arbitration of any internal corporate claim.

Section 7.2 — Indemnification. The corporation shall indemnify its directors and officers to the maximum extent permitted by the Colorado Business Corporation Act, and may, by written agreement, board resolution, or insurance, provide indemnification to other agents and persons acting on behalf of the corporation.

Section 7.3 — Fiscal Year. The fiscal year of the corporation shall be the calendar year, unless changed by resolution of the board of directors.

Severability and reformation are addressed in Article 8 of the articles of incorporation, which control over these bylaws.

Jeremie Miller

Electronically signed by Jeremie Miller (jeremie.miller@gmail.com) in New York City, New York on May 1, 2026 at 7:03 PM UTC

Certificate of Electronic Signature

Document: Written Consent of Sole Director, Sole Shareholder, and Founder — Restatement of Article

Document ID: d0869846

Signers

Jeremie Miller

Role: company

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